

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: August 17, 2026 at 1:30 pm

Rulings Posted: 8/14/26 at 4 pm

#	Case Name	Tentative
301	<i>Dy vs. Wun</i>	Before the Court is a motion by attorney Sabrina Green to be relieved as counsel for Francisco Dy. The motion generally complies with Rule 3.1362. However, the Proof of Service filed on 5/13/26 (ROA 114) is dated October 29, 2025 and does not reflect service of the instant motion, declaration and proposed order. Accordingly, if Ms. Green is able to submit a proper proof of service at, or in advance of, the hearing, the motion will be GRANTED. If Ms. Green fails to do so, the motion will be DENIED. If the motion is GRANTED, Ms. Green will then need to submit a completed proposed order (From

		MC-053) with all fields in the form completed, including the new hearing dates. The order will then become effective upon filing a proof of service showing service of the resulting order on the client. The court vacates the 8/17/26 CMC and sets a OSC re: dismissal for failure to file a FAC for 12/14/26 at 8:45am in Dept. C24. No first amended complaint was filed as ordered by the court on 11/17/25. At the next hearing, the court shall dismiss the case without prejudice pursuant to Code of Civil Procedure section 581(f) unless plaintiff files a first amended complaint. Green shall give notice.
303	<i>Gomez vs. General Motors LLC</i>	Before the Court is the Motion for Attorneys' Fees, etc., filed on 5/12/26 by Plaintiff Leslie Silvana Gomez (Plaintiff) against Defendant General Motors, LLC (GM). As a preliminary matter, GM claims here that the Motion is untimely under Rule 3.1702(b)(1) of the California Rules of Court. Had a dismissal been entered, that would be correct. (See <i>Hatlevig v. General Motors LLC</i> (2026) 118 Cal.App.5th 644, 649-650.) But under the circumstances here, the Court finds the Motion to be timely. On the merits, it is undisputed the parties' settlement agreement permits Plaintiff to recover reasonable attorney's fees, costs and expenses pursuant to Civil Code section 1794(d), in an amount to be determined on noticed motion. A court assessing such a claim is to use the lodestar as the start, to assess the reasonableness of the claim. (<i>Mikhaeilpoor v. BMW of North America</i> (2020) 48 Cal.App.5th 240, 246-247.) The party claiming fees has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and reasonable in amount.

		(Id; <i>Levy v. Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816.) Here, the hourly rates for counsel appear generally reasonable in the context of a contingency lemon law claim (assuming the \$430/hour rate claimed for Mr. McCabe in ROA 37 at ¶ 21, rather than the \$525/hour rate shown for him on the invoice at Ex. A). However, the claimed paralegal rate seems high, and the paralegal time claimed seems excessive in context. In addition, the \$3,500 flat fee claimed for services rendered prior to engagement is not adequately shown to be appropriate here and so will not be allowed. Plaintiff has also failed to show that any multiplier is warranted. The Court therefore finds that the sum which Plaintiff should recover for attorney's fees is \$15,864. With regard to claimed costs, the opposition has failed to show why any should not be recoverable here, and the invoices presented reflect reasonable expenses. The Court thus finds that Plaintiff should recover \$699.80 in costs here. The total award for fees and costs here is therefore \$16,563.80. The court continues the OSC re: dismissal on settled case from 8/17/26 to 12/7/26 at 8:45am in Dept. C24. Plaintiff shall give notice.
304	<i>Forte Properties Mo, LLC vs. Anonymity Assets, LLC</i>	The unopposed demurrer of cross-defendants Balboa Real Estate, Inc. and Ashkon Babae (collectively, Cross-Defendants) directed to the cross-complaint of Anonymity Assets, LLC (Cross-Complainant) is SUSTAINED with 20 days leave to amend. The motion to strike is MOOT.

		Cross-Defendants’ demur to each cause of action in the cross-complaint is well-taken. Cross-Complainant failed to oppose the demurrer. As such, Cross-Complainant implicitly conceded the demurrer’s merit. (See Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20.) Cross-Defendants shall give notice.
305	<i>Aghawani vs. Vershinin Dental Corporation</i>	Before the Court is a continued hearing on plaintiff Lamis Aghawani’s Motion to Place Documents Under Seal. The motion is DENIED as set forth herein. This is the third hearing on the instant motion. In the Court’s Minute Orders for the 5/18/26 and 7/6/26 hearings, the Court noted deficiencies in the moving papers and continued the hearings to allow Aghawani to remedy the problems. In the 7/6/26 Minute Order, the Court stated “A party requesting a court record be filed under seal “must file a motion or an application for an order sealing the record.” (Cal. R. Ct. 2.551(b)(1).) “The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” (<i>Id.</i>) The instant motion is brought pursuant to Code of Civil Procedure §367.3. Plaintiff states she is “an active participant in the Secretary of State’s confidential address program, Safe at Home.” (ROA 62.) She also states that her program identification number is 3763. (ROA 60.) “On June 26, 2026, the plaintiff filed a “Notice of Lodging of Redacted Documents” (ROA 76.) and concurrently lodged copies of the documents with redactions. The Court has reviewed the proposed redactions. On all documents identified in ROA 76, except for ROA 21, the plaintiff has redacted her

	name, address, email and phone number. The Court finds the redactions of this plaintiff's "identifying characteristics" (as defined in Code of Civil Procedure §367.3(a)(1)) appropriate to justify sealing the documents and that the redactions are sufficiently narrowly tailored. "However, on ROA 21, the redaction of the defendant's file number and settlement offer are not appropriate for sealing. "Additionally, Code of Civil Procedure §367.3(c) requires that: "In an action filed under this section, the plaintiff shall state in the caption of the complaint 'ACTION BASED ON CODE OF CIVIL PROCEDURE SECTION 367.3.'" The proposed redacted complaint does not contain this statement in the caption. "Finally, plaintiff will need to submit a proposed order on Judicial Council Form SH-001 which lists her pseudonym (Jane Doe), her address to be contained in the public record, as well as a listing of the documents to be sealed as referenced in the Notice of Lodging at ROA 76. "Accordingly, the hearing on the motion is continued to August 17, 2026 at 1:30 p.m. in Dept. C24 to allow plaintiff to correct the deficiencies listed herein. All further documents must be filed not less than 14 calendar days prior to the continued hearing date." Aghawani has not filed any further documents. Accordingly, the motion is DENIED. Also on calendar is an Order to Show Cause (OSC) as to why the complaint should not be dismissed. The Court initially set OSC in its 5/18/26 Minute Order at which time Aghawani was ordered to show cause as to why the complaint should not be
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		dismissed for failure to serve the defendant as required by Rule 3.110 on July 6, 2026. On 7/6/26, the Court continued the OSC and stated in the Minute Order: “the hearing on the Order to Show Cause as to why the complaint should not be dismissed for failure to serve the defendant as required by Rule 3.110 is continued to August 17, 2026 at 1:30 p.m. in Dept. C24. Any evidence submitted in response to the OSC is required to be filed 14 calendar days prior to the hearing.” Aghawani has not filed a response to the OSC and the defendant has still not been served. Accordingly, the complaint is DISMISSED, without prejudice. The Clerk will give notice.
306	<i>White vs. Castagno</i>	Before the Court is the Demurrer filed on 5/20/26 by Defendant Joseph Castagna, Esq. (Defendant) as to the First Amended Complaint (FAC) filed on 11/19/25 by Plaintiff Russell White (Plaintiff). The Demurrer is directed to all four causes of action in the FAC. The Demurrer as to the First Cause of Action is SUSTAINED. This Court previously ruled that the claim was time-barred as pled, as the alleged occurrence was in 2018. (ROA 26; 10/27/25 M.O.) Plaintiff argues that new facts are alleged in the FAC to show tolling under C.C.P. § 340.6(a). But he has failed to plead facts to support that assertion. Actual injury is alleged to have occurred in 2018. (FAC ¶ ¶12-15.) Tolling based on C.C.P. § 340.6(a)(1) is thus not adequately alleged. Plaintiff asserts that Defendant continued to represent him as to the same subject matter after 2018, but has pled no facts to show that this is so. In addition, Plaintiff here asserts (Opposition, p. 4) that when he attempted to discuss the subject agreement with

		Defendant in 2023 and 2024, Defendant refused to meaningfully respond. That is insufficient to show any ongoing representation of Plaintiff by Defendant. Plaintiff asserts that there was willful concealment by Defendant, but fails to allege facts stating when and how such willful concealment occurred. Plaintiff also argues that some “legal or physical disability” restricted his ability to commence this action, but he has failed to articulate any actual physical or legal disability that restricted his ability to assert a claim. Tolling based on C.C.P. § 340.6(a)(2) –(a)(4) is thus not adequately alleged. The Demurrer as to the First Cause of Action is therefore again SUSTAINED. Plaintiff shall have 20 days leave to amend for this cause of action. The Demurrer as to the Second, Third and Fourth Causes of Action is SUSTAINED. Granting leave to amend after a demurrer is sustained on one ground does not give the plaintiff license to add any possible cause of action that might not be subject to dismissal on that ground. (<i>Zakk v. Diesel</i> (2019) 33 Cal.App.5th 431, 456.) As these causes of action were added without leave to amend, the Demurrer as to each is sustained without leave to amend at present, but without prejudice to a future motion for leave to amend to assert them. The 8/17/26 CMC is continued to 11/30/26 at 8:45am in Dept. C24. Defendant shall give notice.
307	<i>Anderson-Flinth vs. L3Harris Technologies, Inc.</i>	The demurrer by defendant Manny Garcia to the first amended complaint (FAC) filed by plaintiff Katherine Anderson-Flint is OVERRULED. The motion to strike is GRANTED as to paragraphs 3(a)-(h) and the prayer for injunctive relief and DENIED as to the remainder.

Plaintiff is granted 14 days leave to amend only paragraphs 2(c) and 3(a)-(h) of the FAC.

DEMURRER

2nd and 4th Causes of Action: Harassment based on Race and Gender: These two causes of action are sufficiently pled. (See, FAC Paras. 18 & 19; CAC No. 2521A [elements]; Govt. Code §12940(j); *Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-1405 [demurrer does not challenge truth of allegations].) Facts pled show severe or pervasive conduct. (FAC ¶18 [10-15 “counseling” sessions by supervisor telling plaintiff to stop being “an aggressive angry black woman.”]; see also, Govt. Code §12923(b) [single incident sufficient].) Accordingly, the demurrer is **OVERRULED** as to the 2nd and 4th causes of action.

9th Cause of Action: Intentional Infliction of Emotional Distress: This cause of action is sufficiently pled. (See, FAC ¶¶18-19; see also, *Hughes v. Pair* (2009) 46 Cal. 4th 1035, 1050 [elements]; *Ess v. Eskaton Properties, Inc.* (2002) 97 Cal. App. 4th 120, 130 [outrageous conduct based on average member of community].) Accordingly, the demurrer is **OVERRULED** as to the 9th cause of action.

MOTION TO STRIKE

Punitive Damages: The FAC states sufficient facts to allege punitive damages. (See FAC ¶18-19; See also, Civ. Code, § 3294 [malice, oppression, or fraud]; *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725 [despicable conduct].) Accordingly, the motion to strike punitive damages is **DENIED**.

Injunctive Relief: There are no facts pled which make the prayer for injunctive relief relevant as against Garcia. Neither plaintiff nor Garcia are currently employed at L3Harris Technologies, Inc. (Code of Civil Procedure §436 [court may strike any “irrelevant, false, or improper matter.”]; see also, Code of Civil Procedure §431.10 [defining immaterial allegation].) Accordingly the motion to strike is GRANTED as to the prayer for injunctive relief at page 36, line 21 in the FAC as it relates to Garcia only.

Para. 2(c) - DOE Defendant Allegations: These allegations are sufficiently pled. The motion is DENIED as to paragraph 2(c).

Para. 3(a)-(h): The FAC does not plead facts showing how the agency/alter ego/ratification allegations are relevant to the claims against Garcia. The FAC does not appear to allege Garcia is liable for the acts of others but instead alleges Garcia is liable for his own misconduct. Accordingly, the motion to strike is GRANTED as to paragraphs 3(a)-(h) as it relates to Garcia only.

Plaintiff is granted 14 days leave to amend only paragraphs 3(a)-(h) and the prayer for injunctive relief. Leave to amend is NOT granted to alter/amend other portions of the complaint or to add/amend other causes of action. If plaintiff seeks leave to amend, such must be done pursuant to CCP §473 and the appropriate rules.

If an amended complaint is not filed August 31, 2026, defendant Manny Garcia is ordered to file his answer to the FAC not later than September 14, 2026.

The 8/17/26 CMC is continued to 9/28/26 at 8:45am in Dept. C24.

		Plaintiff shall give notice.
308	<i>Kim vs. City of Irvine</i>	The unopposed demurrer of defendant City of Irvine (Defendant) directed to the complaint of plaintiff Richard Kim (Plaintiff) is SUSTAINED with 20 days leave to amend. Defendant's alternative motion to strike is MOOT. "The limited and statutory nature of governmental liability mandates that claims against public entities be specifically pleaded." (<i>Brenner v. City of El Cajon</i> (2003) 113 Cal.App.4th 434, 439.) "Accordingly, a claim alleging a dangerous condition may not rely on generalized allegations [Citation] but must specify in what manner the condition constituted a dangerous condition." (Ibid.) The complaint fails to plead the negligence cause of action against Defendant with the requisite specificity. The complaint does not clearly allege the "improperly placed" animal trap was owned by Defendant or that it was placed by an employee or agent of Defendant. The complaint also fails to allege with sufficient particularity Defendant's actual or constructive notice of the alleged dangerous condition in sufficient time to have taken corrective action. (See <i>Brenner, supra</i>, 113 Cal.App.4th at 439 [discussing elements of cause of action against public entity under Government Code section 835].) Moreover, Plaintiff failed to oppose the demurrer. As such, Plaintiff implicitly conceded the demurrer's merit. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The 8/17/26 CMC is continued to 11/16/26 at 8:45am in Dept. C24. Defendant shall give notice

310	<i>Lacambra vs. Gue</i>	Defendants Dennis Han Gue Oh dba Total Painting & Maintenance and In Tae Oh dba Total Painting and Maintenance's (Defendants) demurrer to the first amended complaint (FAC) of plaintiff Robert Lacambra is SUSTAINED with 20 days leave to amend. <u>8th cause of action (negligent infliction of emotional distress)</u>: The FAC fails to state facts sufficient to constitute this cause of action, including the existence of a legal duty. (<i>Ragland v. U.S. Bank National Assn.</i> (2012) 209 Cal.App.4th 182, 205 [negligent infliction of emotional distress under a "direct victim" theory requires the violation of a duty that the defendant owes directly to the plaintiff]; <i>Friedman v. Merck & Co.</i> (2003) 107 Cal.App.4th 454, 470 ["damages for emotional distress are recoverable when the defendant assumes a duty in which the emotional condition of the plaintiff is an object"].) Plaintiff's request for a finding pursuant to Code of Civil Procedure section 166.1 is DENIED. The 8/17/26 CMC is continued to 10/19/26 at 1:30pm. Defendants shall give notice.
311	<i>Abukamleh vs. Hyundai Motor America</i>	The Motion to Compel Binding Arbitration, filed on 5/8/26 by Defendant Hyundai Motor America (HMA) is DENIED. HMA has failed to show that the parties entered into a valid agreement to arbitrate. HMA asserts that Plaintiff Wisam Abukanileh (Plaintiff) agreed to arbitrate because HMA included an arbitration provision in its "Owner's Handbook & Warranty Information" (Warranty) for the vehicle. (Ameripour Decl., ¶ 4 and Ex. 2.) But HMA has not

shown that the Warranty reflects an actual agreement with Plaintiff: HMA does not present any evidence to show that Plaintiff signed or accepted or saw or was even informed of the arbitration provision in the Warranty.

HMA argues that equitable estoppel applies, as Plaintiff's claims rely on the Warranty. But an essential element of any contract is mutual assent. (*Donovan v. RRL Corp.* (2001) 26 Cal.4th 261, 270.) A warranty is not a traditional contract: it is effectively a unilateral promise to the consumer. (*Gavaldon v. DaimlerChrysler Corp.* (2004) 32 Cal.4th 1246, 1258; *Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 830 ["A warranty is a contractual promise from the seller that the goods conform to the promise."]) Equitable estoppel thus cannot apply in this context. Nor are Plaintiff's claims clearly dependent upon the Warranty. (See *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1133 [warranty claims arise from a statutory scheme; unless properly disclaimed, every retail sale of consumer goods includes the implied warranty that the goods are merchantable], in addition to any express warranty provided by the manufacturer.) HMA has thus failed to show that equitable estoppel applies here.

As HMA has failed to establish that an enforceable arbitration agreement exists between HMA and Plaintiff, the Motion is **DENIED**.

HMA's Request for Judicial Notice is **GRANTED** under Ev. Code §452(d), as to the existence of the record.

HMA shall file a response by 9/4/26.

Counsel for HMA is to give notice of this ruling.

312	<i>Sierra vs. Della Vedova</i>	Counsel David L. Smart of Smart Law Offices' motions to be relieved as counsel of record for plaintiffs Edward A. Sierra and Sabrina A. Sierra are GRANTED. Counsel has complied with the procedural requirements of California Rules of Court, rule 3.1362. The court finds good cause to grant the relief requested on the merits. The order granting relief is effective upon filing of a proof of service of the signed order on the client. The 8/17/26 OSC is continued to 12/7/26 at 8:45am in Dept. C24. Moving counsel shall give notice.
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